

BEFORE THE PROCUREMENT REVIEW COMMITTEE
BALUCHISTAN PUBLIC PROCUREMENT REGULATORY AUTHORITY, QUETTA

PRC APPEAL No.45/2026

M/S Mah'd Engineers (Pvt) Ltd,
Through its Authorized Representative Sajid Anwar Khan,
Office at Airport road, Quetta.

.... Appellant

Versus

1. Chairman Procurement Committee/ Executive Engineer Building, Duki, CWPP&D Department, Quetta.
2. Sub Divisional Officer (Building), CWPP&D Department, Duki, CWPP&D, Quetta.
3. Chairman Grievance Redressal Committee/ Chief Engineer, Building, Quetta Zon, CWPP&D, Civil Secretariat, Zarghoon Road, Quetta.
4. M/s Samad Khan and Brother,
Through Respondent No.1.

.... Respondents

Quorum

- | | |
|------------------------------|--------------------|
| 1. Habib-Ur-Rehman Jamot | Chairman PRC |
| 2. Mubashir Ali Khan (FCIPS) | Member PRC |
| 3. Engr. Junaid Shah | Member PRC |
| 4. Iftikhar Ahmed Mir | Private Member PRC |
| 5. Syed Muheebullah | Private Member PRC |

**APPEAL UNDER RULE-56-A OF THE BALUCHISTAN PUBLIC
PROCUREMENT RULES, 2014 FOR PROJECT TITLED "PRE-FABS
ACCOMMODATION (SP)DUKI**

For the Appellant: Barrister Wasil Jan

For the Respondents No. 1:
For the Respondents No.4:

Asad Khan, Executive Engineer (Building)
Muhammad Ishaq Nasar

DECISION

Dated: 05th March, 2026,

1. BRIEF FACTS

The Appellant is a contractor duly registered with the Pakistan Engineering Council (PEC) and is also registered with the Federal Board of Revenue (FBR) and the Baluchistan Revenue Authority (BRA). The Procuring Agency, namely the Executive Engineer Buildings Duki, invited bids vide PSDP No. 4048 (Z.2025.1700) 2025–2026 through the Single-Stage Two-Envelope Procedure for the work including TSE No. 252601942053 titled **"Pre-Fabs Accommodation (SP) at District Duki PSDP No. 4048 (Z.2025.1700)"**, having an estimated cost of PKR 141,175,528.

The Respondent No. 1 issued a Tender Notice on 09-01-2026 and invited bids for the aforementioned work, and the technical bids were opened on 26-01-2026. Out of four participating bidders, three bidders, including the Appellant, were declared non-responsive during technical evaluation on the grounds of non-compliance with the mandatory eligibility requirements prescribed in the bidding documents, i.e., non-provision of turnover certificate, certificate of similar assignment attached with the bidding documents having different dates, the completion certificate issued three months prior to the work award, BRA certificate not attached, blacklisting certificate missing, and Active Taxpayer Certificate also not attached. The evaluation report was uploaded on 28-01-2026.

Subsequently, the financial bid of the technically responsive bidder was opened on 28-01-2026. The Appellant asserted that it had fulfilled all the eligibility requirements and was wrongly declared non-responsive.

Aggrieved by its disqualification, the Appellant filed a complaint before the Complaint Redressal Committee (CRC) on 28-01-2026. The Respondent No. 3 called a Grievance Redressal Committee meeting on 03-02-2026, and the Appellant duly appeared before the Committee and argued the matter. The Grievance Redressal Committee decided the above-mentioned complaint on 06-02-2026 and rejected the complaint of the Appellant.

Being aggrieved by the order of the Grievance Redressal Committee, the Appellant preferred the present appeal before this Procurement Review Committee under Rule 56-A of the BPPRA Rules, 2014.

2. PRAYERS OF THE APPELLANT

The Appellant has prayed for the following relief:

- i. Declare the disqualification of the Appellant in the technical bid as unlawful, arbitrary and contrary to the bidding documents and the Rules, 2014;
- ii. Set aside the impugned technical bid evaluation report to the extent it relates to the Appellant, whereby the Appellant was wrongly declared technically non-responsive despite fulfilling the prescribed eligibility criteria;
- iii. Declare all subsequent proceedings including opening and evaluation of financial bids as illegal and without lawful Authority, being consequential to a defective and unlawful technical evaluation process;
- iv. Direct the Respondents to re-evaluate the Appellant's technical bid strictly in accordance with the bidding documents and the BPPRA Rules, 2014, after properly considering the documentary evidence submitted by the Appellant;
- v. Direct the Respondents to suspend all further procurement proceedings, including issuance of work order, letter of acceptance or award of contract, till final decision of the instant appeal;
- vi. Grant any other relief deemed just by this honorable Committee.

3. REPLY AND CONTENTIONS OF THE RESPONDENTS

The Respondent No. 1 appeared before this Committee, submitted a written reply, and contested the appeal. Their submissions are summarized as follows:

- i. The appeal is incompetent, as the Appellant allegedly failed to approach this Honorable Committee within the prescribed time.
- ii. The Appellant has furnished only a single work order purportedly issued by a private company/builder. Critically, the said work order bears the date of May 2024, which postdates the issuance of the completion certificate in February 2024. This patent chronological impossibility creates grave concerns as to the genuineness and authenticity of the work order in question.
- iii. The Pakistan Engineering Council (PEC) Registration Policy, 2017 explicitly mandates that, for consideration of works executed in the private sector (including sub-let works), the firm must furnish a minimum of 25% evidence of payments received for each such work. Acceptable forms of evidence include deposits through online transactions, copies of the firm's invoices, employer-issued cheques duly linked with corresponding bank statements, or equivalent verifiable records. The Appellant has conspicuously omitted to provide any such payment evidence in respect of the submitted work order from the private company/builder. This violation of the mandatory policy requirement seriously undermines the authenticity, veracity, and evidentiary value of the work order in question.

- iv. The Technical Evaluation Committee conducted the evaluation strictly in accordance with the bidding documents and the BPPRA Rules, 2014.
- v. The Appellant was declared non-responsive due to non-compliance with the mandatory eligibility requirements prescribed in the bidding documents.
- vi. That the decision of the Technical Evaluation Committee was lawful, justified, and based on documentary record.
- vii. That the Respondents further alleged that the Appellant had not submitted certificates of two similar nature of works.
- viii. That the appeal is without merit and liable to be dismissed.

The Respondent No. 3 appeared before this Committee and submitted the minutes of the meeting dated 06-02-2026, and contested the appeal. The operative paragraph of the order of the Respondent No. 3 is as follows:

"However, upon scrutiny, it was found that the work order was issued by a private company/builder. Additionally, the work order was issued in May 2024, whereas the completion certificate was issued earlier in February 2024, thereby creating serious discrepancies".

The forum then asked the aggrieved bidder to provide documentary evidence supporting their qualification. The bidder argued that, as per the bidding criteria, the Procuring Agency had required submission of Active Taxpayer status and similar nature work orders, which they had provided.

After deliberation, the forum/ CRC rejected the work orders issued by the private company/builder as valid evidence of similar nature of works.

However, the forum/CRC directed the Chairman of the Procuring Agency to accept the Blacklisting Certificate, FBR and BRA Certificates of the bidder, and to verify the turnover certificate from the concerned bank.

Accordingly, the forum/CRC rejected the allegations raised by the aggrieved bidder and ordered that the disqualification of the bidder shall stand.

4. POINTS FOR DETERMINATION

In light of the pleadings and submissions of the parties, the following point arise for determination:

- i. Whether the Appeal filed before this Committee was time-barred;
- ii. Whether the Appellant substantiated its claim of having submitted similar assignments as required under the eligibility criteria.
- iii. Whether the Procuring Agency lawfully declared the Appellant non-responsive.

5. FINDINGS OF THE COMMITTEE

After careful examination of the record, the pleadings of the parties, and the applicable provisions of the BPPRA Rules, 2014, this Committee records the following findings:

- i. The Appellant filed a complaint before the Complaint Redressal Committee (CRC) on 28-01-2026. The Procuring Agency intimated the Appellant of the hearing via a WhatsApp message. The meeting of the Grievance Redressal Committee was accordingly fixed for 03-02-2026, and the Appellant duly appeared and argued the matter in detail. The Grievance Redressal Committee decided the complaint on 06-02-2026 and rejected it. However, the Procuring Agency failed to communicate the decision, including the minutes of the meeting or any written order/intimation, to the Appellant. This failure is in clear violation of Rule 56(4) of the Balochistan Public Procurement Rules, 2014, which provides as follows:

"The Complaint Redressal Committee shall announce its decision within fifteen (15) days and intimate the same to the bidder and the Authority within three (3) working days through the Procuring Agency."

- ii. This Committee observes that the Complaint Redressal Committee (CRC) is statutorily required to intimate or communicate its decision to the aggrieved bidder promptly after the decision is made. However, in the present case, the CRC failed to do so. Consequently, the Appellant remained unaware of the CRC's decision. The record further reveals that the appeal was filed only after the expiry of the statutory appeal period. This Committee notes

- that the CRC, instead of duly intimating the Appellant following the issuance of its decision, neglected this mandatory obligation. In view of the CRC's failure to communicate the decision within the prescribed timeframe, the statutory limitation period cannot be rigidly applied against the Appellant, as the delay in filing the appeal stems directly from the CRC's procedural lapse and non-communication. The Appellant could not reasonably have been expected to initiate an appeal without knowledge of the impugned decision. Therefore, the appeal is held to be maintainable and not time-barred, and the Committee proceeds to examine the merits of the case. The record further reveals that the Complaint Redressal Committee (CRC), in its decision, observed that the work orders issued by a private company could not be relied upon as authentic documentary evidence. The CRC noted that the work order was issued in May 2024, whereas the completion certificate was dated February 2024, indicating that the work was purportedly completed prior to the issuance of the work order. On this basis, the CRC declined to accept the said documents.
- iii. The CRC further directed the Chairman of the Procuring Agency to accept the certificates of FBR registration, BRA registration, and the non-blacklisting certificate submitted by the bidder, and to verify the bidder's turnover accordingly. However, the record indicates that the Procuring Agency did not fully comply with the directions of the CRC. The evaluation report was not revised in accordance with the CRC's decision. Upon scrutiny by this Committee, it was observed that the evaluation report still reflected "NO" against the requirements of FBR registration, BRA registration, and the non-blacklisting certificate.
- iv. The eligibility criteria required the submission of experience certificates for two similar works. Upon scrutiny of the record, the Appellant annexed one work order dated 19-05-2024 titled "Development of Infrastructure Logistic Park at Fateh Jang" and submitted the performance and completion certificate for the same work issued vide Reference No. MAH'D/2025/F.J. dated 02-02-2024. The Appellant argued that the discrepancy in the dates of issuance of both documents was a clerical mistake, and the counsel for the Appellant also placed on record a confirmation letter from the said firm. However, after careful examination of the record, it was observed that the subject of the work order dated 19-05-2024 refers to "Development of Infrastructure Logistic Park at Fateh Jang", whereas the description of the work mentioned in the body of the letter reads: "Development of Infrastructure & Special PEB Work (Phase-II-B) including Shp-2 at Wah Cantt (as per scope of work attached)". Thus, the work order was issued in May 2024, whereas the completion certificate was issued earlier in February 2024. Furthermore, the subject of the letter describes work at Fateh Jang, whereas the body of the letter refers to work at Wah Cantt. Fateh Jang falls in District Attock, whereas Wah Cantt falls in District Rawalpindi.
- v. Furthermore, the Appellant referred to a letter vide Reference No. MAH'D/2025/F.J. dated 02-02-2024 and a purported rectification letter vide Reference No. MAH'D/2025/F.J. dated 02-02-2025. Upon comparison of both letters, it was noted that the rectification letter bears the same reference number; however, it was issued by a private firm "SEED", has no date, contains no reference number, lacks the designation of the signatory, and bears a different signature. Consequently, the Committee declined to accept the work order and related documents due to lack of authenticity.
- vi. The record further reveals that the Complaint Redressal Committee (CRC), in its decision, observed that the work orders issued by a private company could not be relied upon as authentic documentary evidence. The CRC noted that the work order was issued in May 2024, whereas the completion certificate was dated February 2024, indicating that the work was purportedly completed prior to the issuance of the work order. On this basis, the CRC declined to accept the said documents.
- vii. The CRC further directed the Chairman of the Procuring Agency to accept the certificates of FBR registration, BRA registration, and the non-blacklisting certificate submitted by the bidder, and to verify the bidder's turnover accordingly. The CRC also rejected the allegations raised by the bidder and ordered that the disqualification of the bidder shall stand. However, the record indicates that the Procuring Agency did not fully comply with the directions of the CRC. The evaluation report was not revised in accordance with the CRC's decision. Upon scrutiny by this Committee, it was observed that the evaluation report still reflected "NO" against the requirements of FBR registration, BRA registration, and the non-blacklisting certificate.
- viii. Mere assertion or reference without submission of supporting documentary evidence is insufficient to establish compliance with mandatory eligibility requirements.
- ix. Accordingly, the Appellant failed to substantiate its claim regarding submission of similar assignments and failed to establish compliance with the mandatory eligibility criteria.

- x. The burden of proving compliance with eligibility criteria rests upon the bidder. In the present case, the Appellant failed to discharge this burden by producing the required documentary evidence.
- xi. Consequently, the Committee finds that the Procuring Agency acted within its lawful authority in declaring the Appellant non-responsive due to failure to meet the mandatory eligibility requirements.

6. DECISION

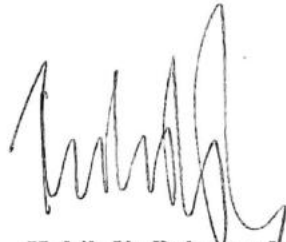
In view of the foregoing findings and after careful consideration of the record and applicable law, this Committee concludes as follows:

- i. The Appellant failed to prove submission of similar assignments as required under the mandatory eligibility criteria.
- ii. The Appellant did not produce documentary evidence of similar work experience.
- iii. Failure to establish compliance with mandatory eligibility requirements renders the Appellant non-responsive in accordance with the BPPRA Rules, 2014.

Accordingly, the present Appeal is hereby DISMISSED, solely on the ground that the Appellant failed to prove submission of similar assignments as required under the eligibility criteria.

The Registrar is directed to communicate this decision to the Appellant and all Respondents for necessary compliance.

Announced under the seal and Authority of the Procurement Review Committee.



Habib Ur Rehman Jamot
Chairman
Government of Balochistan
Public Procurement Review Committee
(B-PPRA)

5/03/2026

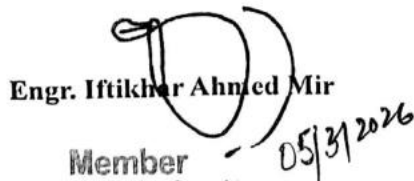


Mubashir Ali Khan (FCIPS)

Member
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05/31/2026



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